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General Comment

The use of generative AI as implemented in modern software applications CANNOT be ethical. All generative AI systems, including ChatGPT, Copilot, etc., are built on a corpus of data that includes art, writing, and more that was not sourced from consenting authors. As such, its output is, by definition, plagiarism. At worst, it could be a violation of trademark, copyright, and even patent. An American plan for AI *cannot* be built on such tenuous legal grounds without exposing the government to a risk of a wide swath of lawsuits, or without stifling the ability of artists and authors to create and have confidence their work will be protected. A chilling effect on the ability of artists to create would stagnate America's position in a variety of fields from which AI content is scraped, rather than enhance our position (or "dominance").

I strongly urge the government to carefully consider whether they want to take those risks.